

Mukhtar Washeem v. Uttar Pradesh Power Corporation Limited

Allahabad High Court · Division Bench · 23 September 2022 · WRIT - C No. 28202 of 2022 · **Writ dismissed; relegated to Section 127 appeal.**

HEADNOTE

Writ challenging an assessing authority's demand computation and disconnection, including a plea that recovery was barred by Section 56(2) of the Electricity Act, 2003 read with Clause 6.5 of the Electricity Supply Code, 2005, dismissed. The Division Bench held that those arguments could be raised in a statutory appeal under Section 127, which was the appropriate remedy.

FACTUAL SUMMARY

The petitioner, Mukhtar Washeem, approached the Allahabad High Court against Uttar Pradesh Power Corporation Limited, challenging a demand notice as illegally computed and the order disconnecting his electricity. He argued that the respondents could not realise electricity dues after the period stipulated in Section 56(2) of the Electricity Act, 2003 read with Clause 6.5 of the Electricity Supply Code, 2005. The dispute was treated as a challenge to computation by the assessing authority.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

s127-appeal-bars-writ-against-assessment-computation

HOLDING

A writ challenging computation of a demand by the assessing authority, and disconnection in realisation of that demand, is not maintainable. The consumer has a statutory appeal under Section 127 of the Electricity Act, 2003; contentions that recovery is barred by Section 56(2) read with Clause 6.5 of the Electricity Supply Code, 2005, may be urged before that appellate forum. ¶ 1

PRINCIPLE TAGS

alternative-remedy-s127-appeal-bars-writ-against-s126-assessment The demand was treated as computation by the assessing authority; the writ against that computation and disconnection was dismissed in favour of the Section 127 appeal. ¶ 1

alternative-remedy-relegation-section-127 The petitioner was relegated to appeal under Section 127 of the Electricity Act, 2003; the writ was dismissed accordingly. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 56(2) OF THE ELECTRICITY ACT, 2003 BARRED REALISATION OF THE DEMANDED DUES AFTER THE STIPULATED PERIOD.

The Court said the argument could be made in the Section 127 appeal. ¶ 1

NOT DECIDED — WHETHER CLAUSE 6.5 OF THE ELECTRICITY SUPPLY CODE, 2005 WAS BREACHED IN RAISING OR RECOVERING THE DEMAND.

Left for the appellate forum. ¶ 1

NOT DECIDED — MERITS OF THE DEMAND COMPUTATION AND THE LEGALITY OF THE DISCONNECTION ORDER.

¶ 1

